

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

LUIS SIERRA MONTEVERDE, *Claimant*

DOCKET NO. 2061(I)

v.

TRANSPARENT INTERNATIONAL, *Respondent*.

Served: September 4, 2026

ORDER OF: Jamie L. MENDELSON, *Small Claims Officer*.

INITIAL DECISION¹

I. INTRODUCTION

This proceeding arises from a small claims complaint (“Claim”), filed by Luis Sierra Monteverde (“Claimant”) against Transparent International (“Respondent”), before the Federal Maritime Commission (“FMC” or “Commission”). Claimant paid Respondent, an ocean transportation intermediary, for an international shipment of Claimant’s household goods from Lincolnwood, Illinois to Sada, Spain. The scope of services included in-home delivery of the household goods at the destination. When the household goods arrived at the destination port, however, Respondent’s destination agent would not release the shipment because Respondent had not paid the destination agent. The household goods remained with Respondent’s destination agent, accruing storage fees, while the destination agent repeatedly attempted to contact Respondent for payment. Claimant ultimately was forced to pay Respondent’s destination agent €2,564.82 to settle the amount Respondent owed, in order to secure the release and delivery of the household goods. Claimant alleges that Respondent violated 46 U.S.C. § 41102(c) and seeks reparations for the amount paid to the destination agent. Respondent has failed to respond to the Claim or otherwise appear in this proceeding. As explained more fully below, a decision on default is issued in this case and Claimant is awarded reparations in the amount of \$3,052.88, plus interest.

II. PROCEDURAL HISTORY

On May 15, 2026, the Office of the Secretary (“OS”) of the FMC received the Claim for informal adjudication. On May 20, 2026, the Secretary of the FMC issued a Notice of Filing of Small Claims Complaint and Assignment (“Notice”), and sent the Notice, together with a copy of the Claim, by UPS to Respondent on the same date. The Notice advised Respondent that it

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

was required to file a response to the Claim by June 15, 2026, and indicate whether it consents to the adjudication of the Claim under the informal procedures provided at Subpart S of the Commission's Rules of Practice and Procedure (46 C.F.R. § 502.301-305) ("Rules"). The mailing containing the Notice and Claim were returned as undeliverable.

On June 11, 2026, the Secretary re-sent the Notice and Claim by FedEx to Respondent's address on file for service of process with the Secretary of State of New York, where Respondent is registered as a limited liability company.² FedEx successfully delivered the Notice and Claim on June 12, 2026, as evidenced by the FedEx proof of delivery for tracking number 872961676134.

Respondent did not file a response and therefore did not refuse to consent to the informal procedures. On July 22, 2026, the Chief Administrative Law Judge assigned this proceeding to the undersigned Small Claims Officer ("SCO") for adjudication under the informal procedures for small claims.

On July 24, 2026, an Order for Respondent to Show Cause ("OSC") was issued, requiring Respondent to show cause by July 31, 2026, why a default judgment should not be entered against it for failing to file a response to the Claim. The OSC warned Respondent that a failure to respond could cause Respondent to be deemed in default and reparations to be awarded to Claimant. The OSC was successfully delivered to Respondent's address on July 27, 2026, as evidenced by FedEx proof of delivery for tracking number 874840598984. Respondent did not respond to the OSC.

On August 3, 2026, a Request for Information ("RFI") was issued to Claimant. Claimant submitted a response to the RFI, along with supporting documentation, on August 5, 2026. ("C. RFI Resp.").

III. PRELIMINARY ISSUES

A. Jurisdiction

The Shipping Act provides that a "person may file with the Federal Maritime Commission a sworn complaint alleging a violation of this part." 46 U.S.C. § 41301(a). Pursuant to this provision, the Commission has exclusive jurisdiction over a complaint alleging that a respondent committed an act prohibited by the Shipping Act. *See Anchor Shipping Co. v. Aliança Navegação E Logística Ltda.*, Dkt. No. 02-04, 30 S.R.R. 991, 2006 WL 2007808, at *11 (FMC May 10, 2006); *see also Cargo One, Inc. v. COSCO Container Lines Co. Ltd.*, Dkt. No. 99-24, 28 S.R.R. 1635, 1645, 2000 WL 1648961, at *15 (FMC Oct. 31, 2000). Here, the Commission has jurisdiction because the Claim alleges a violation of section 41102(c) of the Shipping Act.

² <https://apps.dos.ny.gov/publicInquiry/EntityDisplay> (last visited Aug. 25, 2026).

It appears that Respondent may have ceased its business operations. Respondent ceased communications, no longer maintains its website,³ had its FMC ocean transportation intermediary license revoked on October 19, 2025, for failure to maintain a bond,⁴ and has failed to respond in this proceeding. Respondent is a registered limited liability company in the State of New York under the entity name Transparent Logistics LLC, with an assumed name of Transparent International.⁵ The State of New York Division of Corporations official website shows that Respondent last filed a Biennial Statement on September 19, 2025, and reflects a current entity status of “active.”⁶ Thus, even if Respondent has ceased business operations, it does not appear that Respondent has legally dissolved. Pursuant to New York Business Corporation Law § 1006, even if Respondent legally dissolves, it “may ... be sued in all courts and participate in actions and proceedings, whether judicial, administrative, arbitral or otherwise, in its corporate name, and process may be served by or upon it” and the “dissolution of a corporation shall not affect any remedy available to or against such corporation, its directors, officers or shareholders for any right or claim existing or any liability incurred before such dissolution.” N.Y. Bus. Corp. Law § 1006(a)(4) and (b).

B. Default

Respondent has failed to respond in this proceeding by failing to file a response to the Claim and failing to respond to the OSC. “Under such circumstances, it is customary for the Commission as well as courts to find that a defaulting respondent has admitted the well-pled allegations both as to the specific violations of law alleged and as to the specific money damages alleged.” *Smart Garments v. Worldlink Logix Servs.*, Dkt. No. 10-11, 2011 WL 7144015, at *1 (ALJ Oct. 31, 2011) (citations omitted), *aff’d* 2013 WL 9808693 (FMC Sep. 12, 2023). “The presiding officer may issue a default judgment, a cease and desist order, or other just ruling against a party that fails to respond to a properly served order or pleading.” *Smart Garments*, 2013 WL 9808693, at *2 (citations omitted).⁷

Here, Respondent was properly served the Claim at its address for service of process on file with the New York Secretary of State.⁸ Despite being properly served, Respondent did not respond to the Claim, nor did it respond to the OSC. By failing to contest the allegations against it, the allegations are deemed admitted.

³ The shipping invoices issued by Respondent include Respondent’s website <https://www.movingtransparent.com>. (Claim at pp. 6-7). The website is no longer active and displays the message “Site Currently Unavailable.” <https://www.movingtransparent.com> (last visited Aug 25, 2026).

⁴ <https://www.fmc.gov/wp-content/uploads/2025/12/2025.10-October-OTI-License-Revocations-and-Surrenders.pdf> (last visited Aug. 25, 2026).

⁵ See <https://apps.dos.ny.gov/publicInquiry/AssumedNameHistory> (last visited Aug. 25, 2026).

⁶ See <https://apps.dos.ny.gov/publicInquiry/FilingHistory> (last visited Aug. 25, 2026).

⁷ Although not directly applicable to the informal procedures in small claims proceedings, Commission Rule 65 provides that a party to a proceeding may be deemed to be in default if that party fails to answer or otherwise to defend the proceeding. 46 C.F.R. § 502.65(a)(2). When a party is found to be in default, the presiding officer may issue a decision on default upon consideration of the record, including the complaint. *Id.* § 502.65(b). Decisions on default have also been issued in small claims proceedings. See, e.g., *Fenton v. Rocky Mountain Overseas*, Dkt. No. 1965(I) (SCO Feb. 17, 2021), *admin. final* Mar. 22, 2021.

⁸ See <https://apps.dos.ny.gov/publicInquiry/EntityDisplay> (last visited Aug. 25, 2026).

IV. FINDINGS OF FACT

A. Parties

1. Claimant Luis Sierra Monteverde is an individual currently residing in Spain. (Claim at ¶ I).
2. Respondent is a limited liability corporation registered in the State of New York with an active entity status. (<https://apps.dos.ny.gov/publicInquiry/EntityDisplay> (last visited Aug. 25, 2026)). Respondent's registered entity name is Transparent Logistics LLC, with an assumed name of Transparent International. (<https://apps.dos.ny.gov/publicInquiry/AssumedNameHistory> (last visited Aug. 25, 2026)).
3. Respondent held itself out as an ocean transportation intermediary engaged in international shipping services. (Claim at ¶ II).
4. Respondent's web address is www.movingtransparent.com. (Claim at pp. 6-7).⁹ Respondent's website is no longer active and displays the message "Site Currently Unavailable." (www.movingtransparent.com (last visited Aug. 25, 2026)).
5. Respondent was an FMC licensed ocean transportation intermediary until its license was revoked on October 19, 2025, for failure to maintain a bond. (<https://www.fmc.gov/wp-content/uploads/2025/12/2025.10-October-OTI-License-Revocations-and-Surrenders.pdf>).

B. Shipping Agreement

6. On February 24, 2025, Claimant entered into an agreement with Respondent for the international shipment of Claimant's household goods from Lincolnwood, Illinois to Sada, Spain. (C. RFI Resp. at Ex. A).
7. The shipping agreement shows a "Move Date" of July 21, 2025, and a "Move Cost" of \$8,990.00 for the following scope of services:

SCOPE OF SERVICES AT ORIGIN:

- Basic disassembly of standard furniture pieces (if necessary) and wrapping of furniture
- Wrapping of 2 mirrors, 3 table lamps and a door
- Labeling all items and numbering with inventory stickers
- Preparation of itemized inventory list
- Loading and bracing of container
- Shuttle Truck Collection / 1 month free storage included
- Trucking to and from port

⁹ The Claim is not paginated. The page numbers throughout this decision refer to the PDF file page number.

- Export documentation
- Ocean Freight

SCOPE OF SERVICES AT DESTINATION:

- Customs clearance
- Trucking of effects from port to final address
- In home delivery of all items to ground floor
- Terminal handling charges
- Unwrapping and basic reassembly of items disassembled at origin

(C. RFI Resp. at Ex. A).

- Respondent invoiced Claimant \$8,990 for the shipment and \$175 for cargo insurance. (Claim at pp. 6-7). The invoices included Respondent's "OTI-NVOCC" number "026891N." (*Id.*). Claimant paid Respondent the invoiced amount in full. (Claim at pp. 8-10; C. RFI Resp. at Ex. C).

C. Respondent's Failure to Fulfill its Obligations

- On December 29, 2025, Respondent's destination agent in Spain emailed Claimant to explain that the household goods had arrived at the destination port and were being stored at a warehouse pending "an administrative process" with Respondent. (C. RFI Resp. at Ex. D, pp. 4-5). The message stated, in relevant part:

Please be informed that your move arrived in order and it is stored at the warehouse in A Coruña.

There is an administrative process pending between Transparent and our company.

[Respondent's employee] is taking care of that and we expect to have it solved very soon.

As soon as I have confirmation of tentative delivery date, I will inform asap.

(*Id.*).

- On January 12, 2026, Claimant emailed Respondent expressing frustration that the household goods were still sitting in storage due to Respondent's failure to pay the destination agent, and demanding that Respondent pay the destination agent so that the household goods could be released and delivered as promised. (C. RFI Resp. at Ex. D, pp. 3-4). The message stated, in relevant part:

I just spoke with [the destination agent] in Spain, and the situation is extremely concerning.

Our shipment arrived in Spain over a month ago and has been sitting in storage since then. It cannot be delivered because the Spanish partner has not been paid by Transparent International.

This is completely unacceptable.

We paid Transparent International in full **before shipment**, with the clear understanding—reinforced during conversations with [Respondent’s employee]—that there would be no hidden costs, no outstanding balances, and no issues upon arrival. We relied on those assurances when approving payment in advance.

As a result of Transparent’s failure to pay its partner, our belongings have now been held in storage for over a month. Any storage fees incurred due to this delay are the responsibility of Transparent International and must be covered by you.

For context, I have been in Spain for three months as of today, and our belongings left in September. This delay is entirely unreasonable and avoidable.

Please escalate this internally immediately and confirm, in writing:

1. When the Spanish company will be paid in full
2. When our belongings will be released for delivery
3. That Transparent International will cover all storage costs caused by this delay

(*Id.*) (emphasis in original).

11. The destination agent emailed Respondent on January 29, 2026, and again on February 9, 2026, about Respondent’s failure to pay the overdue invoices owed to the destination agent. (C. RFI Resp. at Ex. D, pp. 1-2).
12. The record does not contain any response from Respondent to the numerous emails. (C. RFI Resp. at Ex. D).

D. Claimant’s Mitigation Efforts

13. Ultimately, due to Respondent’s failure to fulfill its obligation, on February 11, 2026, Claimant paid the destination agent €2,564.82 (the equivalent of \$3,052.88)¹⁰ to secure the release and delivery of the household goods. (C. RFI Resp. at Ex. B).
14. On February 10, 2026, Claimant sent Respondent an email message clarifying that the payment was “made under protest” to secure the release of Claimant’s household goods. (C. RFI Resp. at Ex. D). The message stated, in relevant part:

As my household goods remain held in Spain and storage costs continue to accrue, I am writing to confirm that any payment made by me to the

¹⁰ The conversion was calculated using an online historical currency conversion calculator for the date of February 11, 2026. <https://www.oanda.com/currency-converter/en/?from=EUR&to=USD&amount=2564.82> (last visited Aug. 25, 2026).

destination agent to secure the release of my shipment will be made under protest.

Any such payment would be:

- Made without admission of liability
- Made solely to mitigate additional storage and related charges
- Made as a direct result of Transparent International's failure to pay its destination agent

I have been informed that Transparent International owes EUR 1,650, and that with warehouse handling, storage, destination port charges, and VAT, the total amount currently required to release the shipment is EUR 2,564.82. These charges have arisen solely due to non-payment by Transparent International after the shipment arrived in Spain.

Any payment made by me is not an acceptance of responsibility for these charges. I expressly reserve all rights to seek full reimbursement from Transparent International and to pursue all available regulatory and legal remedies.

(*Id.*) (emphasis omitted).

15. After receiving payment from Claimant, the destination agent delivered Claimant's household goods on or about February 16, 2026. (C. RFI Resp. at Exs. F, G).
16. Claimant did not file a cargo insurance claim and has not received any insurance proceeds. (C. RFI Resp. at No. 4).
17. Claimant filed a bond claim with Respondent's surety Hudson Insurance Company ("Hudson"), pursuant to 46 U.S.C. § 40902(b) and 46 C.F.R. § 515.23. (C. RFI Resp. at Ex. I). On April 28, 2026, the firm representing Hudson issued a letter to Claimant denying the bond claim on the grounds that there is neither a judgement against Respondent nor a settlement. (*Id.* at Ex. J). The letter states in relevant part:

The bond was issued pursuant to the Shipping Act of 1984, 46 U.S.C. 40101-41309. The condition of the bond is that the penalty amount is available:

"to pay any judgment or any settlement made pursuant to a claim under 46 CFR 515.23 for damages against the Principal arising from the Principal's transportation-related activities or order for reparations issued pursuant to section 11 of the Shipping Act (46 U.S.C. 41301-41302, 41305-41307(a)) or any penalty assessed against the Principal pursuant to section 13 of the Shipping Act (46 U.S.C. 41107-41109)."

The Proof of Claim seeks recovery under the surety's bond. After reviewing your claim and the documents submitted, the surety found that the condition of the bond has not been met. There is no indication that a judgment against the Principal has been obtained, nor has a settlement been made as to your claim, pursuant to 46 CFR 515.23. Therefore, based on the language of the bond, the surety must respectfully deny your claim.

(*Id.*).

V. ANALYSIS

A. Violation of Section 41102(c)

Section 41102(c) of the Shipping Act states that a “common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C. § 41102(c). The elements of a section 41102(c) claim are that:

- (1) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (2) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (3) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (4) The practice or regulation is unjust or unreasonable; and
- (5) The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.4.

Here, Claimant's allegations, supported by evidence submitted into the record, establish that Respondent violated section 41102(c). With respect to the first element, Respondent was a licensed ocean transportation intermediary with the FMC at the time Respondent accepted payment for an international shipment of Claimant's household goods. Moreover, Respondent held itself out as an ocean transportation intermediary engaged in international shipping services. Accordingly, the first element is met.

With respect to the second element, Respondent's conduct was not an isolated incident, but rather the continuous manner in which Respondent was conducting business. *See Interpretive Rule, Shipping Act of 1984*, 83 Fed. Reg. 64478, 64479 (Dec. 17, 2018) (a violation requires a showing that “the unreasonable regulation or practice was the normal, customary, often repeated, systematic, uniform, habitual, and continuous manner in which the regulated common carrier was conducting business”). To date, the Commission has received at least four other complaints filed against Respondent from different claimants alleging the same pattern of accepting payment

for an international shipment of household goods, and then failing to ship or deliver the household goods and ceasing communication. On the same date as the issuance of the Initial Decision in this matter, Initial Decisions are also being issued in those four separate cases finding that Respondent engaged in the same unreasonable practice.¹¹

The third element is also met. Respondent's conduct related to the pickup, shipment, and delivery of Claimant's household goods from Illinois to Spain—thus relating to the “receiving, handling, storing, or delivering property.” 46 C.F.R. § 545.4(c).

Respondent's conduct was patently unreasonable. Respondent accepted payment for an international shipment of Claimant's household goods, which under the terms of the shipping agreement included trucking the household goods from the destination port for an in-home delivery at the final address. While Respondent did ship the household goods to the destination port, Respondent abandoned the goods with its destination agent, failed to pay its destination agent, and ceased communication. Accordingly, the fourth element is met.

Finally, the last element is met, as Respondent's conduct proximately caused Claimant to suffer losses—Claimant had to pay the destination agent the amount Respondent owed, in order to secure the release and delivery of the household goods.

B. Reparations

The Claim seeks reparations for the €2,564.82 Claimant paid the destination agent to settle the amount Respondent owed, in order to secure the release and delivery of the household goods.

Pursuant to section 41301, a “complainant may seek reparations for an injury to the complainant caused by [a] violation” of the Shipping Act. 46 U.S.C. § 41301(a). “If the complaint was filed within [three years after the claim accrues], the Federal Maritime Commission shall direct the payment of reparations to the complainant for *actual* injury caused by a violation.” *Id.* § 41305(b) (emphasis added). Accordingly, “[r]eparations will only be awarded based on actual damages.” *Color Brands, LLC v. AAF Logistics, Inc.*, Dkt. No. 22-18, 2024 WL 4034609, at *2 (ALJ Aug. 27, 2024), *admin. final* Sep. 27, 2024. “The term ‘actual damages,’ ... means those recoverable from a wrongdoer as compensation for the actual loss or injuries sustained by reason of the wrongdoing.” *California Shipping Line, Inc. v. Yangming Marine Transport Corp.*, Dkt. No. 88-15, 1990 WL 427466, at *23 (FMC Oct. 19, 1990). However, “[t]hat does not require absolute precision.” *MAVL Capital Inc. v. Marine Transport Logistics, Inc.*, Dkt. No. 16-16, 2022 WL 2209421, at *3 (FMC June 10, 2022). The Commission allows the adjudicator discretion in determining the amount of reparations. *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2026 WL 2427726, at *10 (FMC Aug. 13, 2026).

Here, Respondent's violation proximately caused actual injury to Claimant in the form of the €2,564.82 Claimant had to pay to settle the amount Respondent owed to its destination agent, in order to secure the release and delivery of the household goods. Claimant's payment of

¹¹ Docket Nos. 2059(I), 2063(I), 2064(I), and 2067(I).

€2,564.82 on February 11, 2026, was the equivalent of \$3,052.88.¹² Accordingly, reparations are ordered in the amount of \$3,052.88.

Additionally, “actual injury” includes “the loss of interest at commercial rates compounded from the date of injury.” 46 U.S.C. § 41305(a). It is reasonable to consider the date of injury as the date Complainant paid the destination agent the amount owed by Respondent. Accordingly, February 11, 2026, shall be considered the date of injury for purposes of calculating the interest due.

VI. CONCLUSION

It is hereby **ORDERED** by default that Respondent violated 46 U.S.C. § 41102(c). It is

FURTHER ORDERED that Respondent must pay reparations in the amount of \$3,052.88, plus interest calculated from February 11, 2026.

SO ORDERED

Jamie L.
Mendelson -S

Digitally signed
by Jamie L.
Mendelson -S

Jamie L. Mendelson
Small Claims Officer

¹² <https://www.oanda.com/currency-converter/en/?from=EUR&to=USD&amount=2564.82> (last visited Aug. 27, 2026).